

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4229

By: Kannady

AS INTRODUCED

An Act relating to public buildings and public works; allowing school districts or public schools to declare an emergency for purposes of entering an emergency contract; providing conditions that must exist; limiting the scope of emergency declarations to contracts and actions to restore occupancy and permit return of displaced students; clarifying what emergency declarations shall not apply to; requiring emergency declarations to be approved by governing board; requiring emergency declarations to be documented and retained as part of public record; clarifying section does not limit other granted emergency contracting authority; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 130.1 of Title 61, unless there is created a duplication in numbering, reads as follows:

A. Notwithstanding any other provision of the Oklahoma Competitive Bidding Act, a school district or public school may declare an emergency for purposes of entering into an emergency

1 contract pursuant to Section 130 of this title only when one or more
2 of the following conditions exist:

3 1. No Occupancy. A school building or facility is not occupied
4 by students, faculty, staff, or the public due to damage, unsafe
5 conditions, or the failure or loss of essential building systems; or

6 2. Student Displacement. Students who would normally attend
7 classes in the affected building or facility have been displaced,
8 reassigned, or relocated to alternative instructional settings due
9 to damage, unsafe conditions, or the failure or loss of essential
10 building systems.

11 B. An emergency declared pursuant to this section shall be
12 limited solely to contracts and actions necessary to restore
13 occupancy of the facility or permit the return of displaced
14 students, including emergency repair, remediation, replacement of
15 essential systems, or temporary instructional facilities.

16 C. An emergency declaration under this section shall not apply
17 to:

18 1. Routine maintenance;

19 2. Planned renovations or capital improvements;

20 3. Projects undertaken for convenience, cost savings, or
21 project acceleration; or

22 4. Any condition in which the school facility remains occupied
23 and students are not displaced.

1 D. Any emergency declaration made pursuant to this section
2 shall:

3 1. Be approved by the governing board of the school district or
4 public school;

5 2. Be documented in writing, stating the specific facts
6 supporting the emergency declaration; and

7 3. Be retained as part of the public record in accordance with
8 the Oklahoma Open Records Act.

9 E. Nothing in this section shall be construed to expand or
10 limit the emergency contracting authority otherwise provided in
11 Section 130 of this title, but rather to define and limit the
12 circumstances under which a school district or public school may
13 invoke such authority.

14 SECTION 2. This act shall become effective November 1, 2026.
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